

ASCII MASTER FLOW – PANEL 1/9: Tribunalisation: specialist justice under constitutional supervision

ROOT QUESTION

Can specialist adjudication improve access and speed without creating executive-controlled courts?

RATIONALE

expertise | flexible procedure | high-volume disposal | geographical access | lower cost.

CONSTITUTIONAL SOURCE

42nd Amendment 1976 -> Part XIVA -> Articles 323A and 323B.

STATUTORY SOURCE

Administrative Tribunals Act 1985 -> CAT and enabled SAT arrangements.

NON-NEGOTIABLE FLOOR

judicial independence + natural justice + reasoned order
+ High Court/Supreme Court constitutional review.

ASCII MASTER FLOW – PANEL 2/9: Articles 323A and 323B compared

ARTICLE 323A

public-service recruitment and service conditions.

law-maker: Parliament.

administrative-tribunal design.

ARTICLE 323B

listed subjects: tax, labour, land reform, elections and others in text.

law-maker: appropriate legislature within competence.

subject-specific tribunal/hierarchy.

COMMON HISTORY

text allowed court exclusion.

CURRENT LAW

L. Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

TRAP

enabling Article != automatic creation of a tribunal.

ASCII MASTER FLOW – PANEL 3/9: CAT and SAT institutional architecture

CAT

Principal Bench + notified benches;
Chairperson + Judicial Members + Administrative Members under current law.

JURISDICTION

covered Union recruitment/service matters and notified bodies.

SAT

State service tribunal may exist through statutory arrangement;
States vary and some SATs have been abolished or not constituted.

EXCLUSIONS

follow exact Administrative Tribunals Act text and notifications;
not every public employee or constitutional office enters CAT.

CONTROL

appointments, tenure and service conditions must be stated with the 25 August 2026 caveat.

ASCII MASTER FLOW – PANEL 4/9: Application, procedure, powers and contempt

PROCESS

jurisdiction check -> Original Application -> notice/reply/record
-> interim issue -> hearing -> reasoned final order.

PROCEDURE

natural justice | flexible procedure | not rigidly bound by CPC.

POWERS

summons | documents | affidavits | commissions | review/other statutory powers.

CONTEMPT

statutory power subject to governing law and constitutional review.

LIMIT

procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.

ASCII MASTER FLOW – PANEL 5/9: L. Chandra Kumar (1997) and the correct review chain

ORIGINAL CONSTITUTIONAL DESIGN

tribunal as substitute first-instance forum + exclusion clauses.

L. Chandra Kumar (1997)

High Court Articles 226/227 and Supreme Court Article 32 review are basic structure;

exclusion clauses invalid;

tribunals may test vires of subordinate legislation and statutes except parent legislation limits.

OPERATIVE CHAIN

tribunal order -> territorial High Court Division Bench -> Supreme Court constitutional route.

TRAP

routine direct appeal from CAT to Supreme Court

is not the ordinary substitute for High Court review.

ASCII MASTER FLOW – PANEL 6/9: Tribunal-independence doctrine across five decisions

Union of India v. R. Gandhi (2010)

transferred judicial work requires equivalent independence, qualifications and safeguards.

Madras Bar Association NTT (2014)

National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.

Madras Bar Association IV (2020)

Tribunal Rules scrutinised; selection and tenure safeguards reinforced.

Madras Bar Association V (2021)

short tenure, age and executive override defects invalidated in the 2021 ordinance/Act line.

Roger Mathew v. South Indian Bank (2019)

Finance Act/rules route and tribunal independence examined.

Madras Bar Association tribunal reforms (2025)

reported 2025 INSC 1330 continues the constitutional control and directs institutional reform.

LIMIT

service-condition detail remains date-sensitive; doctrine is stable, implementation is not.

ASCII MASTER FLOW – PANEL 7/9: Rationalisation, abolition and access-to-justice consequences

2021 RATIONALISATION

abolish specified appellate bodies -> transfer functions to courts/other forums
-> common service framework.

POSSIBLE GAIN

less fragmentation | fewer duplicative bodies | clearer appeal path.

POSSIBLE COST

specialised expertise lost | burden shifted to High Courts
| vacancies and transition delay | access becomes geographically harder.

SAT VARIATION

abolition/merger differs by State and statute; no uniform live SAT map should be invented.

TEST

pendency outcome + bench capacity + independence + user cost + transitional clarity.

ASCII MASTER FLOW – PANEL 8/9: CAT, courts, commissions and ADR distinguished

CAT

statutory service adjudication -> binding reasoned order -> High Court review.

HIGH COURT

constitutional court -> writ/supervisory jurisdiction -> broad public-law control.

COMMISSION

investigation/advice/report unless statute grants adjudicatory power.

LOK ADALAT

statutory settlement/conciliation -> award based on compromise.

ARBITRATION

consensual private adjudication -> limited statutory challenge.

DEPARTMENTAL APPEAL

administrative reconsideration -> not independent judicial adjudication.

TRAP

specialised does not automatically mean tribunal; binding does not automatically mean court.

ASCII MASTER FLOW – PANEL 9/9: UPSC synthesis and reform architecture

PRELIMS FIREWALL

323A service != 323B listed subjects | enabling != creating
| CAT != constitutional court | flexible != arbitrary
| first instance != final constitutional word | rationalisation != pendency cure.

MAINS SPINE

rationale -> constitutional/statutory source -> structure/jurisdiction
-> procedure/powers -> L. Chandra Kumar (1997) chain
-> independence cases -> rationalisation/access -> reform.

REFORM

independent appointments body | secure adequate tenure | transparent vacancies
| administrative autonomy | national data/standards | regional benches
| coherent appeals | periodic performance review without decisional interference.

VERDICT

tribunals are justified only as independent, accessible specialist courts
under constitutional supervision.